

may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

Here, there is no signed settlement agreement nor any oral stipulation before the court. All parties to be bound must agree to the material terms and thus, absent oral assent in open court, a written settlement is enforceable under CCP § 664.6 only if signed by the party against whom enforcement is sought and by the party seeking to enforce it. (*Harris v. Rudin, Richman & Appel* (1999) 74 Cal.App.4th 299, 305; *Gallo v. Getz* (1988) 205 Cal.App.3d 329, 333.)

While Plaintiff's counsel communicated that the parties agreed to a settlement at mediation, the parties never finalized the settlement agreement or terms therein. There is nothing indicating any party signed any agreement. A trial court cannot apply the summary procedure for a judgment enforcing a settlement agreement where not all of the parties signed the settlement agreement. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 992 [finding error where the trial court enforced a settlement agreement under § 664.6 based on it being "more likely than not" a party had agreed to settle after sending an email indicating acceptance but never signing a formal settlement agreement].) While CCP § 664.6(b)(2) does indicate a signature from a party's attorney will suffice, there is no such signature – only an email mentioning a "settlement". There is no enforceable settlement agreement for the court to enter judgment upon.

For this reason, the request to enforce the settlement agreement pursuant to CCP § 664.6 is denied.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406368	DURO vs HYUNDAI MOTOR AMERICA, A CALIFORNIA CORPORATION	MOTION TO COMPEL VEHICLE INSPECTION

Tentative Ruling:

Moving party: Defendant Honda Motor America
Responding party: Plaintiff Lorina Margaret Duro

This is a lemon law action. On November 12, 2024, Plaintiff Lorina Margaret Duro ("Plaintiff") filed a Complaint against Defendant Honda Motor America ("Defendant") for: (1) breach of express warranty in violation of the Song Beverly Act; (2) breach of implied warranty in violation of the Song Beverly Act; and (3) violation of section 1793.2 of the Song Beverly Act. In the Complaint, Plaintiff alleges that on March 24, 2022, she purchased a 2022 Hyundai Palisade (the "Vehicle"), on which Defendant issued a written warranty. (Complaint at ¶¶ 8-9.) The Vehicle was delivered to Plaintiff with defects to the engine, electrical, emission, structural, and suspension systems that impaired the use, value, and safety of the Vehicle. (Complaint at ¶¶ 10, 22, 26.)

Plaintiffs brought the Vehicle to Defendant's authorized repair facility for repairs, and Defendant could not conform the Vehicle to the warranty within a reasonable number of attempts. (Complaint at ¶¶ 11-14, 27-28.)

On June 5, 2025, Defendant served a demand for an inspection of the Vehicle for July 9, 2025. On July 2, 2025, Plaintiff served objections to the demand. On January 13, 2026, Defendant served a second demand for inspection of the Vehicle, scheduling it for February 16, 2026. On February 9, 2026, Plaintiff again served objections to the demand. On February 12, 2026, Plaintiff proposed an inspection date of April 16, 2026. On February 17, 2026, Defendant served a third demand for inspection of the Vehicle for April 16, 2026. On April 13, 2026, Plaintiff filed objections to the demand.

Defendant now moves for an order compelling Plaintiff to produce the Vehicle for inspection, as well as for sanctions.

In opposition, Plaintiff argues that the motion is moot because she provided August 6, 2026 as a date for inspection of the Vehicle, which is the soonest available date for Plaintiff and her expert.

In reply, Defendant argues that the Vehicle inspection has still not occurred; Defendant's expert is not available on the one date proposed by Plaintiff; and sanctions are appropriate.

Analysis

I. Meet and Confer

Defendant met its statutory obligation to meet and confer before filing this motion. (Decl. of Sarah Suard ["Suard Decl."] at ¶¶ 11-15.)

II. On the Merits

Pursuant to C.C.P. § 2031.010(a) "[a]ny party may obtain discovery ... by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action." A party may demand that any other party allow the party to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it. (C.C.P. § 2031.010(d).) If the responding party fails to serve a timely response to an inspection demand, the demanding party may move to compel a response. (C.C.P. § 2031.300(a).) C.C.P. §2031.300(c) provides for sanctions on a motion to compel an inspection.

Here, Defendant first served a notice for inspection of the Vehicle in June 2025, and Plaintiff objected. (Suard Decl. at ¶¶ 4-5, Exs. A, B.) Defendant served two additional inspection demands, and followed up on several occasions, but no inspection

has occurred. (Suard Decl. at ¶¶ 6-15, Exs. C-H.) Plaintiff states in her opposition that she provided a date for the inspection (August 6, 2026), so the motion is moot. However, Defendant advises that its expert was not available for the one date provided by Plaintiff, so the inspection has still not occurred. Furthermore, the purported date is more than a year after the date originally noticed, and Plaintiffs only agreed to the inspection well after this motion had been filed. (Decl. of Daniel Louis at ¶ 4.)

Since the inspection has not occurred as of the time of this hearing, and no date has been mutually agreed upon, the **motion is granted**. (C.C.P. 2031.300(a).) Plaintiff is ordered to produce the Vehicle for inspection on a mutually agreeable date on or before August 31, 2026. Defendant is also to be awarded sanctions in the reduced but reasonable amount of \$460 (\$400/hour x 1 + \$60 filing fee) because it was forced to file this motion in order to get a response from Plaintiff regarding the inspection. (C.C.P. §2031.300(c).)

Summary:

Grant the motion. Order Plaintiff to produce the Vehicle for inspection on a mutually agreeable date on or before August 31, 2026. Award sanctions in the reduced but reasonable amount of \$460 (\$400/hour x 1 + \$60 filing fee) to Defendant payable within 30 days of this order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX vs COUNTY OF RIVERSIDE	MOTION TO STAY CIVIL ACTION OR FOR PROTECTIVE ORDER

Tentative Ruling:

Moving party: Defendants County of Riverside and Deputy Glynn Allen Wilburn

Responding party: Plaintiffs Madeline Fox, by and through her guardian ad litem, Melissa Fox, Lauren Hinkley, individually and as successor-in-interest to Gavin Hinkley, Cory Hinkley, individually and as successor-in-interest to Gavin Hinkley, and the Estate of Gavin Hinkley, by and through successors-in-interest Lauren Hinkley and Cory Hinkley

This is a wrongful death action. Plaintiff Madeline Fox, by and through her guardian Melissa Fox (collectively, "Plaintiff"), alleges that on 9/6/25, Defendant Glynn Allen Wilburn, a County of Riverside sheriff's deputy, drove a County patrol vehicle in the course and scope of his employment at more than 100 miles per hour. Plaintiff alleges that Wilburn approached a red light and was traveling 98.1 miles per hour just 2 seconds before the crash. Defendant struck the left side of a Tesla that was allegedly making a lawful left turn. The crash killed the Tesla's driver, 21-year-old Gavin Hinkley, and caused permanent brain injuries to his passenger and fiancée, Madeline Fox. They